

24FL02587 NEDOROSKI/SCHEMPER DISSOLUTION

County: sonoma

Division: Family Law

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Motion to Set Aside Default and Prohibit Move of Children CONTINUED to the law and motion calendar of _October 02, 2026, in Department 20 at 9:30 a.m. unless Respondent resolves the issues of service and a proposed responsive pleading as explained below. Prior to the new hearing, the moving party must file timely proof of service in accord with California Rule of Court 3.1300, demonstrating service of notice of the hearing.

Should Respondent resolve the issues noted, the court will reach the merits and GRANT the motion.

Facts

Petitioner filed this action for marital dissolution with minor children (the "Children") on December 24, 2024 and she filed a first amended petition ("FAP") on January 7, 2025. She filed her first proof of service for the summons and petition, although titled "amended," on January 14, 2026, showing that she served Respondent personally on January 7, 2025. She requested and obtained the default of Respondent on January 14, 2026 as well.

On June 24, 2026, this court granted Respondent's request for temporary emergency orders preventing transfer of the Children's records to a new school without agreement of the parties or a court order.

Motion

Respondent moves the court to set aside the default and to prevent Petitioner from moving with the Children to Siskiyou County. He contends that he had originally agreed to a default because he believed that the parties had an agreement regarding terms for the judgment but after Petitioner obtained the default it appeared to him that she was attempting to change the terms and will now seek to enter a judgment with terms different from those to which he agreed. He also seeks an order preventing Petitioner from taking the Children to Siskiyou County.

There is no opposition.

Applicable Authority

According to the Family Law Rules of the California Rules of Court ("CRC") 5.2(d), and Family Code ("Fam. Code") section 210, provisions applicable to civil actions generally apply to proceedings under the Family Code unless otherwise provided. This includes the rules applicable to civil actions in the California Rules of Court and the Code of Civil Procedure ("CCP"). In re Marriage of Zimmerman (2 Dist. 2010) 183 Cal.App.4th 900, 910-911.

Relief from orders, due to default or otherwise, in family-law cases may be based on the grounds generally applicable to motions to vacate under CCP section 473, or, after that deadline, only in accordance with the grounds in Fam. Code sections 2121, 2122, and 3691. In re Marriage of Zimmerman (2 Dist. 2010) 183 Cal.App.4th 900, at 910-911 (Fam. Code section 2122 governs relief from judgment while Fam. Code section 3691 governs relief from support orders other than judgment); see also In re Marriage of Tavares (2007) 151 Cal.App.4th 620. As the Marriage of Zimmerman court explained,

Aside from the six-month period specified in Code of Civil Procedure section 473, subdivision (b) for moving to set aside an order, section 3691 is the exclusive set-aside remedy. An authority stated, "After the CCP § 473(b) six-month time limit has run, the trial court may ... relieve a party from a support order ... based only on the grounds and within the time limits set forth in Fam.C. § 3690 et seq...." [Citation.]

An order setting aside the default is discretionary where based on mistake, inadvertence, surprise, or excusable neglect. CCP section 473(b). There is a policy in favor of hearing cases on their merits and the motion to vacate should be granted if the moving party shows a credible, excusable explanation. Elston v. City of Turlock (1985) 38 Cal.3d 227. This provision is remedial in its nature and is to be liberally construed so as to allow parties to present the merits of their cases. Ramsey Trucking Co. v. Mitchell (1961) 188 Cal.App.2d Supp. 862.

"Surprise" is "some condition or situation in which a party... is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against." Credit Managers Ass'n of So. Calif. v. National Independent Business Alliance (1984) 162 Cal.App.3d 1166, 1173.

"Excusable neglect" comes down to whether the moving party has shown a reasonable excuse for the default. Davis v. Thayer (1980) 113 Cal.App.3d 892, 905. The moving party must show that the default would not have been avoided through ordinary care. Elms v. Elms (1946) 72 Cal.App.2d 508, 513. The test ultimately is one of reasonable diligence. Jackson v. Bank of America (1983) 141 Cal.App.3d 55, 58. A showing that the defendant was unable to understand what he was served with is sufficient to justify relief. Kesselman v. Kesselman (1963) 212 Cal.App.2d 196, 207-208. Another valid basis is if the defendant mislaid or misfiled the papers and as a result failed to obtain an attorney in time. Bernards v. Grey (1950) 97 Cal.App.2d 679, 683-686. Simply forgetting about the lawsuit or being too "busy" is not adequate. Andrews v. Jacoby (1919) 39 Cal.App. 382, 383-384. Excusable neglect by attorneys includes situations where, despite reasonable supervision, an attorney's secretary misfiled papers or failed to enter an appearance date. Elston v. City of Turlock (1985) 38 Cal.3d 227, 234; Alderman v. Jacobs (1954) 128 Cal.App.2d 273.

Fam. Code section 2122 sets forth the various bases for relief pursuant to that provision. Aside from stipulated judgments, not applicable here, the grounds include actual fraud where the defrauded party was kept in ignorance or in some other manner was fraudulently prevented from fully participating in the proceeding; perjury in the preliminary or final declaration of disclosure, the waiver of the final declaration of disclosure, or in the current income and expense statement; duress; and mental incapacity.

In proceedings to set aside pursuant to Fam.Code section 2121, the court also "shall find that the facts alleged as the grounds for relief materially affected the original outcome and that the moving party would materially benefit from the granting of the relief." Fam.Code section 2121(b); see also Marriage of Walker (2012) 203 Cal.App. 4th 137, 146; Marriage of Brewer & Federici (2001) 93 CA4th 1334, 1345; Marriage of Varner (1997) 55 Cal.App.4th 128, 137.

Fam. Code section 2122 sets forth the various bases for relief pursuant to that provision. As to stipulated or uncontested judgments, or any part thereof, a motion under Fam. Code section 2122 may be based on mutual or unilateral mistake of law or fact. Fam.Code section 2122(e). Under this provision, "mistake" is broader than the "extrinsic mistake" standard applying to the court's inherent power to set aside. See Marriage of Brewer & Federici (2001) 93 Cal.App. 4th 1334, 1345, fn. 10; Marriage of Varner (1997) 55 Cal.App. 4th 128, 144. Authority indicates that a party may seek relief on various grounds not otherwise recognized by the statute as long as they can be found to fall within the scope of "mistake" as broadly applied. See Marriage of Walker (2012) 203 Cal.App. 4th 137, 147, (upholding validity of section 2122(e) motion to vacate community property ruling based solely on erroneous legal conclusion). No wrongdoing is necessary for relief based on mistake. Marriage of Brewer & Federici (2001) 93 Cal.App.4th 1334, 1347, (wife honestly stated value of one of her pensions was "unknown" but valuation information was readily available to her).

Service and Notice

Respondent filed a proof of service showing service of the request for order ("RFO") and related documents on Petitioner, by mail and e-mail, on June 25, 2026. He also filed a separate proof of service for the temporary orders. However, Respondent filed several documents during this time, and it is unclear if the RFO mentioned is the RFO and motion set for this hearing. Respondent must clarify this and demonstrate service of this RFO and notice of this hearing. Unless Respondent fails to do so, the court will CONTINUE the motion with the requirement that proof of service be filed at least 5 court days prior to the hearing. California Rule of Court ("CRC") 3.1300(c).

Discussion

Default

Respondent filed this motion less than 6 months after entry of the default. Accordingly, relief is available not only through Fam. Code section 2021 and 2022 but through standard civil grounds for setting aside defaults, including CCP section 473. Respondent demonstrates in his declarations that he had allowed the default to be entered because he had reached an agreement with Petitioner about the terms of the judgment. Petitioner obtained the default but has not entered judgment, the court having rejected the original filing effort. He explains that the agreement included terms stating that neither parent may move the Children from their current school, Sebastopol Charter School, without written consent of both, but that Petitioner has now moved to Siskiyou County and is taking the Children with her there and taking them out of the school. This shows that she is no longer complying with the agreement as Respondent understood it. The court record also supports Respondent's explanation, since he prepared his preliminary declaration of disclosure ("PDD") and signed it on February 18, 2025, and also entered into a stipulation with Petitioner regarding final declarations. Petitioner then delayed entering the default by almost a year.

This is sufficient to show reasonable mistake and fraud in accordance with the standards set forth above. However, Respondent has not provided a proposed responsive pleading and must do so. In the event that the court finds proper service and notice, and Respondent provides a proposed responsive pleading, the court will GRANT the motion as to setting aside the default. Otherwise, the court will CONTINUE the motion.

Prohibition on Moving Away

Respondent also seeks an order barring Respondent from relocating the Children to Siskiyou County. He demonstrates that the parties had agreed that the Children would remain in this county and at their current school absent written agreement of both, but that Respondent has now decided to relocate them to Siskiyou County.

Fam. Code section 7501 gives a parent with sole custody of a child the right to change the child's residence subject to the court's authority to restrain removal which would prejudice the rights or welfare of the child. As the Supreme Court explained in *In re Marriage of Brown & Yana* (2006) 37 Cal.4th 947, at 957, this gives a parent with sole custody a presumptive but not an absolute right to move away, expressly allowing the court to restrict that right should it prejudice the child's welfare.

Moreover, "the trial court has "the widest discretion to choose a parenting plan that is in the best interest of the child." [Citation.] It must look to all the circumstances bearing on the best interest of the minor child. [Citation.]" *In re Marriage of Burgess* (1996) 13 Cal.4th 25, 31-32.

At this point, there has been no custody determination and Respondent demonstrates that the parties had agreed that the Children would remain in their current location and school until further agreement. The court finds that under these circumstances, Petitioner must not relocate the Children until there has been a determination of these issues.

In the event that the court reaches the merits of the motion, it will GRANT the motion on this point.

Conclusion

The court will CONTINUE the motion unless Respondent resolves the issues noted above.

The prevailing party shall prepare and serve a proposed order consistent with this tentative ruling within five days of the date set for argument of this matter. Opposing party shall inform the preparing party of objections as to form, if any, or whether the form of order is approved, within five days of receipt of the proposed order. The preparing party shall submit the proposed order and any objections to the court in accordance with California Rules of Court, Rule 5.125.